

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

Court of Appeal Case No.
CA (PHC) 04/2021

High Court of Panadura Case No.
HCRA 10/2020

Magistrate Court of Horana Case
No. 43886/19

In the matter of an application for Revision under and in terms of Article 138 of the Constitution of the Democratic Socialist Republic of Sri Lanka to be read with the Provisions of the Act No. 19 of 1990.

The Chairman,
Land Reform Commission,
No.475, Kaduwela Road,
Battaramulla.

Applicant

Vs.

Thilak Nishantha Settinayake,
Pavivekarama Meditation Centre Welfare
Society,
In front of the Hospital,
Lenawara, Haltota.

Respondent

AND BETWEEN

Thilak Nishantha Settinayake,
Pavivekarama Meditation Centre Welfare
Society,
In front of the Hospital,
Lenawara, Haltota.

Respondent- Petitioner

Vs.

The Chairman,
Land Reform Commission,
No.475, Kaduwela Road,
Battaramulla.

Applicant-Respondent

AND NOW BETWEEN

Thilak Nishantha Settinayake,

Pavivekarama Meditation Centre Welfare
Society,
In front of the Hospital,
Lenawara, Haltota.

Correct Address

No.55, Mount View,
Aladdin Peiris Mawatha,
Horana.

Respondent- Petitioner- Appellant

Vs.

The Chairman,
Land Reform Commission,
No.475, Kaduwela Road,
Battaramulla.

Applicant-Respondent- Respondent

Before: **Damith Thotawatte, J.**
K.M.S. Dissanayake, J.

Counsels: Rasika Dissanayake with Aruna Jayathilaka and K. S. K. Mendis
for the Petitioner.
A.D.H. Gunawardhana for the Applicant-Respondent-
Respondent.

Argued: 12.02.2026

Written submissions
tendered on: 31.10.2025 by Respondent- Petitioner- Appellant.
11.06.2025 by Applicant-Respondent- Respondent (filed in CA
(CPA) 29/2021)

Judgment Delivered: 22.06.2026

Thotawatte, J.

History of the Proceedings Before this Court

The Appeal bearing No. CA (PHC) 04/2021 had been received by the Court of Appeal on 08.03.2021, whilst the Revision Application bearing No. CA (CPA) 29/2021 was subsequently instituted in respect of the same order dated 19.01.2021 of the High Court of the Western Province holden at Panadura invoking both the appellate and revisionary jurisdictions of this Court simultaneously, as was not uncommon at that time.

By the journal entries dated 13.06.2024 in CA (PHC) 04/2021, it had been recorded that both parties agreed that Revision Application bearing No. CA (CPA) 29/2021 be argued and that the judgment delivered therein be accepted as governing the connected Appeal bearing No. CA (PHC) 04/2021.

When CA (CPA) 29/2021 was called on 12.02.2026, learned Counsel for the Petitioner, in view of subsequent judgments of this Court holding that such revision-on-revision applications are not maintainable before the Court of Appeal, sought to withdraw the Revision Application and proceed only with the connected Appeal, CA (PHC) 04/2021.

Learned Counsel for the Respondent, while raising no objection to the withdrawal of the Revision Application, moved that the written submissions filed in CA (CPA) 29/2021 on 11.06.2025 be treated as part of the record in CA (PHC) 04/2021.

Upon the submissions of both parties having been concluded on 12.02.2026 in CA (PHC) 04/2021, judgment had been fixed for 12.06.2026.

Introductions

This appeal has been preferred by the Respondent-Petitioner-Appellant (hereinafter referred to as the “Appellant”) against the order dated 19.01.2021 of the learned Judge of the High Court of the Western Province holden at Panadura made in Revision Application No. HCRA/10/2020, whereby the learned High Court Judge dismissed *in limine* the Appellant's application seeking revision of the order dated 09.09.2020 made by the learned Magistrate of Horana in Case No. 43886/19 instituted under the provisions of the State Lands (Recovery of Possession) Act, No. 07 of 1979.

Factual Background

The Land Reform Commission instituted proceedings in the Magistrate's Court of Horana under Section 5 of the State Lands (Recovery of Possession) Act seeking the ejectment of the Appellant from the subject property on the basis that the occupation was unauthorized. The property in question consisted of Lots 01, 02 and 03 of the land known as "Hegallawatte" situated at Horana and belonging to the Land Reform Commission.

The Appellant resisted the application on the basis that the Pavivekarama Meditation Centre Welfare Society had been granted permission by the Land Reform Commission to establish and operate a meditation centre on the said land and that substantial developments had been carried out thereon.

Upon consideration of the material placed before Court and the written submissions tendered by the parties, the learned Magistrate by order dated 09.09.2020 allowed the application and directed the ejectment of the Appellant from the subject premises. Being dissatisfied with that order, the Appellant invoked the revisionary jurisdiction of the Provincial High Court of Panadura. By order dated 19.01.2021 the learned High Court Judge dismissed the revision application *in limine*.

It is from that order that the present appeal arises.

Grounds of Appeal

Examination of the Petition of Appeal and the written submissions filed on behalf of the Appellant reveals that the principal contentions advanced may be summarized as follows:

- a) that the proceedings had been instituted against an incorrect party, the occupation being that of the Pavivekarama Meditation Centre Welfare Society and not the Appellant in his personal capacity;
- b) that the Land Reform Commission had previously resolved to lease the property to the Meditation Centre, and that such decision had not been properly considered;
- c) that the learned High Court Judge erred in refusing to interfere with the order of the learned Magistrate.

The Respondent, on the other hand, contended that the decision relied upon by the Appellant had subsequently been cancelled, that no valid lease agreement had been executed in favour of the Appellant or the Society, that the occupation remained

unauthorized, and that no exceptional circumstances had been disclosed warranting intervention of the High Court in revision.

Analysis

The jurisdiction exercised by the learned High Court Judge was revisionary in nature. It is well settled that revision is an extraordinary discretionary remedy. A Court exercising revisionary jurisdiction is not concerned with re-hearing the dispute or substituting its own view merely because another conclusion may be possible. Intervention is warranted only where there exists illegality, jurisdictional error, procedural impropriety, denial of natural justice, manifest perversity or a miscarriage of justice.

The burden therefore rested upon the Appellant to demonstrate exceptional circumstances justifying the exercise of such extraordinary jurisdiction.

Having considered the material placed before Court, I am unable to discern any such circumstance.

The central premise of the Appellant's case is that the Pavivekarama Meditation Centre Welfare Society had been granted rights over the property by reason of a decision of the Land Reform Commission. However, the Respondent consistently maintained that the decision relied upon by the Appellant had subsequently been cancelled and that no lease agreement had been executed. Significantly, the Appellant has been unable to point to any valid lease instrument or other legally operative document conferring a present right of occupation. Indeed, the Respondent has specifically contended that the alleged decision of the Commission relied upon by the Appellant stood cancelled and that such cancellation was never challenged by the Appellant.

Further, the contention that proceedings were instituted against the wrong party does not disclose any jurisdictional defect in the Magistrate's order. The contention that the Appellant occupied the premises only in a representative capacity does not, in itself, constitute a bar to the institution of proceedings or the making of an ejectment order under the Act. The relevant inquiry is whether the Appellant was the person found to be in possession or occupation of the land at the material time. The fact that such occupation may have been exercised on behalf of another does not necessarily negate the fact of occupation.

Whether the Appellant was the person in possession or occupation of the land for the purposes of the Act was a matter to be determined by the learned Magistrate on the evidence before him. The correctness of that finding cannot ordinarily be revisited in revision unless it is demonstrated to be perverse, unsupported by the evidence, or otherwise affected by a jurisdictional error.

The Appellant's complaints are, in substance, directed at the correctness of the conclusions reached by the learned Magistrate on the material before Court. Such complaints go to the merits of the determination. Revisionary jurisdiction is not intended to afford a dissatisfied litigant a further opportunity to re-argue questions of fact or evidentiary weight.

I am also unable to find any procedural irregularity, denial of natural justice, excess of jurisdiction or patent illegality in the proceedings before the Magistrate which would have rendered the impugned order amenable to revision.

In those circumstances, the learned High Court Judge was fully justified in concluding that the application failed to disclose the exceptional circumstances necessary for the exercise of revisionary jurisdiction and in refusing to entertain the same.

Conclusion

Accordingly, this Court holds that the order dated 19.01.2021 of the learned Judge of the High Court of the Western Province holden at Panadura dismissing Revision Application No. HCRA/10/2020 is correct in law and should not to be disturbed.

Therefore, the appeal is dismissed subject to cost fixed at Rs. 50,000/- to be paid by the Appellant.

Judge of the Court of Appeal

K.M.S. Dissanayake, J.

I agree

Judge of the Court of Appeal